

FITNESS WAIVER AND RELEASE

- (a) I _____ (**Participant**) agree to abide by the rules of Jump Start Sports. I am responsible for any damage to the equipment which I may cause due to negligence.
- (b) I _____ HEREBY WAIVE AND RELEASE, indemnify, hold harmless and forever discharge Jump Start Sports, and its agents, employees, officers, directors, affiliates, successors and assigns, coaches, teachers and trustees of and from any and all claims, demands, debts, contracts, expenses, cause of action, lawsuits, damages, and liabilities, of every kind of nature, whether known or unknown, in law or equity, that I ever had or may have, arising from or in any way related to my participation in any of the events or activities conducted by, on the premises, of, or for the benefit of, Jump Start Sports, provided that this waiver of liability does not apply to any acts of gross negligence, or intentional, wilful or wanton misconduct.
- (c) I understand that the activities, in which I will participate, are inherently dangerous and may cause serious or grievous injuries, including bodily injury, damage to personal property and/or death. On behalf of myself, my heirs, assigns, administrators, executors and next of kin, I waive all claims of damage, injuries and death sustained to me or my property, that I may have against the aforementioned release party to such activities, including claims in tort, contract, equity or otherwise.
- (d) I acknowledge, agree and represent that I understand the nature of Jump Start Sports, I AM IN GOOD HEALTH and in PROPER PHYSICAL CONDITION to participate in such activities. I further agree and warrant that if at any time I believe conditions to be unsafe, I will IMMEDIATELY DISCONTINUE further participation in the activity
- (e) I hereby declare that I have disclosed all pre-existing medical conditions, including but not limited to cardiovascular issues, respiratory conditions, musculoskeletal injuries, or any other health concerns that may affect my participation in activities at . I agree to promptly inform of any changes in my medical condition and acknowledge that failure to disclose relevant health information may void this waiver and release.
- (f) By this Waiver, I assume any risk, and take full responsibility and waive and of personal injury; death, damage, or loss of personal property, associated with Jump Start Sports, including but not limited to using the facility and its equipment in any manner, form or fashion, and participating and/or engaging in any The Client (participant) will take part in a range of multi-sport and physical activity sessions designed to develop movement skills, teamwork, and confidence. Activities may include but are not limited to: • Ball sports such as soccer, AFL, basketball, tennis, and dodgeball • Invasion and tag-style games • Agility, balance, and coordination drills • Relay and team-based challenges • Stretching, warm-up, and cool-down

exercises All sessions are non-contact, age-appropriate, and supervised by qualified coaches at all times. Activities are modified to suit the skill level and abilities of each participant to ensure a safe, inclusive, and positive experience., event or other related activities on and off the premises.

- (g) This WAIVER AND RELEASE supersedes any prior written or oral agreements between them concerning the subject matter of this WAIVER AND RELEASE. The provisions of this WAIVER AND RELEASE may be waived, altered, amended or repealed, in whole or in part, only upon the prior written consent of all parties.
- (h) The laws of Western Australia govern this document.
- (i) The provision of this WAIVER AND RELEASE will continue in full force and effect even after the termination of the activities conducted by, on the premises of, or for the benefit of Jump Start Sports, whether by agreement, by operation of law, or otherwise.
- (j) I have read, understood and fully agree to the term of this WAIVER AND RELEASE. I understand and confirm that by signing this WAIVER AND RELEASE I have given up considerable future legal rights.
- (k) I acknowledge and understand the specific risks inherent in fitness activities at Jump Start Sports, including but not limited to: muscle strains, ligament sprains, joint injuries, bone fractures, cardiovascular stress, heat exhaustion, and potential long-term physical effects. I understand that certain medical conditions may increase these risks, and I accept full responsibility for consulting healthcare professionals about my fitness to participate. I acknowledge that even with proper supervision and safety measures, these risks cannot be completely eliminated.